

REVITALIZED AMENDED DECLARATION
HICKORY CREEK RESTRICTIONS FOR THE 2ND ADDITION

This Revitalized Declaration of Hickory Creek Restrictions for the 2nd Addition has been approved by the Membership of Hickory Creek Property Owners' Association, Inc., who own lots within Hickory Creek 2nd Addition, pursuant to Chapter 720 of the Florida Statutes. The original Hickory Creek Restrictions for the 2nd Addition, recorded in Official Records Book 2611, Pages 194 through 202, of the Public Records of Hillsborough County, Florida; and the Amended Deed Restrictions for Hickory Creek Subdivision, Unit #1, Hickory Creek 1st Addition, and Hickory Creek 2nd Addition, recorded in Official Records Book 10788, Pages 1372 through 1381, of the Public Records of Hillsborough County, Florida, and as set forth below, shall be effective upon recording of this Revitalized Declaration as to certain lands in Hillsborough County, Florida, more particularly described as follows:

Hickory Creek 2nd Addition, recorded in Plat Book 45, Page 1 of the Public Records of Hillsborough County, Florida.

1. The herein described lots and every piece, part and parcel thereof, shall be used for single family residential purposes only.

2. The word "plot," wherever used herein, shall mean the entire piece of land in which a residence is situated, or is to be situated, be it one lot, more than one lot, parts of more than one lot, or less than one lot, which meet or meets the plot size requirements of these Restrictions.

3. Each one-story house shall contain at least One Thousand Five Hundred and Seventy-Five (1,575) square feet. Each two-story house shall contain at least Two Thousand (2,000) square feet, and such two-story house must contain must at least One Thousand (1,000) square feet in its first floor.

When computing the size of a house, the area included in the open porch, garage, and carport areas shall not be included, and the aforesaid square foot requirements pertain to enclosed living area only, including exterior walls of the house. Each house shall have a garage, or a carport, for not less than two automobiles with a total of at least five hundred (500) square feet, including utility or storage area.

4. A house, garage, or carport, shall not be closer than fifty (50) feet to the front plot line. The words “front plot line,” wherever used herein, shall mean the plot line bordering the street which the house faces, or most nearly faces. As to corner lots, the owner shall determine which yard is to be designated as the front yard.

5. A stable shall not be closer than 100 feet to the front plot line. The words “front plot line,” wherever used herein, shall mean the plot line bordering the street which the house faces, or most nearly faces.

6. A house, garage, carport or stable shall not be closer than twenty-five (25) feet to the rear plot line. The words “side plot line” and “rear plot line,” wherever used herein, shall have their usual meaning considered in relation to the front plot line.

7. A house, garage, carport or stable shall not be closer than twenty-five (25) ft to the side plot line. The words “side plot line” shall have its usual meaning considered in relation to the front plot line. Due to narrow dimensions on Lots 7 and 8, Block 1, the twenty-five foot side line setback requirement will not apply so that on Lot 8, Block 1, a stable may be constructed no closer than eight (8) feet to the west boundary line, and on Lot 7, Block 1, a stable may be constructed no closer than eight (8) feet to the east boundary line.

8. Open porches and utility and storage rooms which are a part of a carport are subject to the foregoing setback requirements for carports and garages, as are outbuildings, including but not limited to glass houses and screen enclosures with screen roofs, with the further requirement outbuildings shall be located only in the rear yard. Screened or glassed-in porches are subject to the forgoing setback requirements for houses.

9. Garages and carports must be located so that the openings do not face the front yard. All openings to carports and garages will be either on the side or the rear of the dwellings.

10. No building shall be erected, altered, placed, or permitted to remain on any residential building plot other than one detached single-family dwelling not to exceed three stories in height and a private garage or carport for not more than a number of cars equal to the number of bedrooms in the house, and other outbuildings as otherwise provided herein. No building shall be erected on any plot containing less than twenty-five thousand (25,000) square feet or on any

plot having a width, measured at the middle of the plot, of the less than one hundred (100) feet, except corner plots where said width shall not be less than ninety (90) feet.

11. No fence or wall of any type shall be erected on any lot or building plot, unless such fence wall is approved by Hickory Creek Property Owners Association, Inc., said approval to be secured in writing prior to erection and following submission to Hickory Creek Property Owners Association, Inc., of drawings or written description which fully describes said fence or fence wall and its location.

12. Boundary fences may be established, erected, and maintained by the Hickory Creek Property Owners Association, Inc., within certain easements designated as bridle paths. No owner of any lot may alter, modify, damage, remove, or change in any way such fence or any portion thereof. Such fences, erected primarily for aesthetic protection of the Subdivision, are intended for the exclusive use of the adjoining property owners and such owners may not convert such fences to their exclusive use.

13. No asphalt shingle roofs may be used unless they are classed as at least two hundred and thirty-five (235) pounds. Gravel type roofs may not be used except on flat roof surfaces.

14. All air conditioner compressors shall be screened with shrubbery so as to be wholly or substantially not visible from the street or any other plot. All air conditioner compressors shall be acoustically insulated, if necessary, to reasonably reduce noise from this source heard on adjacent lots.

15. All garbage or trash containers, oil tanks, bottle gas tanks, soft water tanks, or similar structures or installations, shall be placed under the surface of the ground or in a walled-in areas so as to not be visible from a street or any other plot. No clothesline, permanent or portable, shall be placed so as to be visible from the street or from adjacent or nearby plots.

16. The erection of a new house, or the repair of any house or structure damage by fire or otherwise, on any lot or plot shall be completed without unreasonable delay, and should the owner leave such house or structure in an incomplete condition for a period of more than six (6) months, then Hickory Creek Property Owners Association, Inc., is authorized and empowered as

its discretion either to tear down and clear from the the premises said house or structure which is incomplete or in need of repair, or to complete or repair it in a manner deemed proper in the discretion of Hickory Creek Property Owners Association, Inc. and, in either event, the expense incurred by Hickory Creek Property Owners Association, Inc., shall be a lien against said plot, enforceable in the same manner as a mortgage lien.

17. No sign of any kind shall be displayed on any lot or plot except a sign advertising said plot for sale. Such sign must not exceed the dimensions of two feet by four feet.

18. No animals, livestock or poultry of any kind shall be raised, bred, or kept on any lot or plot, except that dogs and cats or other household pets may be kept, provided they are not kept, bred or maintained for any commercial purpose. Saddle horses or ponies, not to exceed two such animals to a plot or a lot, may be kept so long as such animals are for the exclusive use of the occupants of the dwelling.

19. No garage shall be erected on any lot or plot prior to the construction of a house thereon.

20. No noxious or offensive trade or activity shall occur upon or incident to any plot, nor shall anything be done thereon which is an annoyance or nuisance.

21. No existing structure shall be moved onto any lot or plot except for tool houses which are used by the hosue building contractor and which shall be removed after completion of improvements.

22. No structure or shelter of any type of a temporary nature or character shall be used as a residence.

23. All houses and all outbuildings, such as garages, carports, utility rooms, swimming pools, screen enclosures, bathhouses, stables, etc., or additions thereto, must be built to plans which have the written approval of Hickory Creek Property Owners Association, Inc., prior to the commencement of the construction, and which meet all requirements contained in these Restrictions. Hickory Creek Property Owners Association, Inc. may, as its discretion and solely

on the basis of its aesthetic standards for Hickory Creek Subdivision, withhold approval of such a plan which meets all of the requirements contained in these Restrictions.

Such withholding of approval may take place with regard to location of house and outbuildings on a plot, and setback distance requirements may be thereby increased in such instances so as to be, in the discretionary judgment of Hickory Creek Property Owners Association, Inc., more consistent with the setback distances of other plots. Any requirements elsewhere in these Restrictions including any requirement for written approval by Hickory Creek Property Owners Association, Inc., of a particular aspect of construction or design, shall not detract in any way, by implication or otherwise, from the requirement of this paragraph that all plans, as aforesaid, shall contain specific details of all features, such as eaves, cornice, entrance frame and moldings, which affect the exterior appearance of said house or outbuilding and shall be submitted to Hickory Creek Property Owners Association, Inc., at least thirty (30) days prior to commencement of construction. Any deviation, however minor, from said plans which would affect the location or exterior appearance of a house or outbuilding, or which would prevent the house or outbuilding from meeting all requirements of these Restrictions, shall nullify previously given approval. Architectural control and rights of architectural or structural approval specified hereinabove and elsewhere in these Restrictions shall be exercisable and enforceable by, and shall become the right and responsibility of, Hickory Creek Property Owners Association, Inc.

24. The owner of each plot shall pay to Hickory Creek Property Owners Association, Inc., a Florida corporation, at Tampa, Florida, a fee of Two Hundred Twenty-Five Dollars (\$225.00) per year, payable on the first of day of January of each year. Said fee may be increased only by two-thirds (2/3) of the total membership votes of Hickory Creek Property Owners Association, Inc. Said fee may be decreased only by two-thirds (2/3) of the total membership votes of Hickory Creek Property Owners Association, Inc. Votes for the purpose of increasing or decreasing the said fee may be cast by U.S. mail if at a duly constituted meeting of the membership of Hickory Creek Property Owners Association, Inc., called for said purpose, a majority of those present vote in favor of said increase or decrease but said increase or decrease is not thereby favored by a two-thirds (2/3) vote of the total membership vote of said organization, such voting in person or by U.S. mail to be conducted and completed within ninety (90) days after said meeting

under procedures otherwise established by the Board of Directors of Hickory Creek Property Owners Association, Inc.

25. Any such fee remaining unpaid by any such plot owner for a period of thirty (30) days following the date payable as specified hereinabove shall thereafter bear interest at the rate of eight per cent (8%) per annum, and shall become, and be, a lien against said plot, the amount of said lien to include said interest and all costs of recordation, collection, and enforcement of said lien, including reasonable attorney's fees. The Board of Directors of Hickory Creek Property Owners Association, Inc., may at any time after such fee or assessment has become a lien, as aforesaid, record in public records of Hillsborough County, Florida, a Notice of Lien, which shall state the amount and description of said lien, name of delinquent plot owner, and description of the property of said owner affected by said lien, said Notice to be signed by an officer of Hickory Creek Property Owners Association, Inc. Upon satisfaction of said lien, said corporation shall provide said owner with written notice that said lien has been satisfied, said notice of satisfaction of lien to be signed by an officer of said corporation. Said lien may be enforced and foreclosed upon as and in the same manner as is provided for the foreclosure of a real estate mortgage under Florida law.

26. Each lien established by these Restrictions shall be subordinate to a bona fide mortgage which has been given in good faith and for value by any owner against whose property in Hickory Creek said lien attaches as aforesaid if such mortgage has been recorded prior to recordation of the Notice of Lien referred to hereinabove.

27. Each plot with a house thereon, whether occupied or unoccupied, shall be maintained clean and free from refuse, debris, unsightly growth, and any fire hazard. In the event any plot owner shall fail, neglect or omit to trim or maintain any hedge at the street line, or fail to keep clean and maintained any lot in the manner hereinabove specified for more than ten (10) days after having been given notification to do so by the Hickory Creek Property Owners Association, Inc., addressed via certified mail to such owner at his last known address, the Hickory Creek Property Owners Association, Inc., may enter upon such plot for the purpose of remedying said defects and failures stated in said notice, and the expense of so remedying said defects shall be

charged to the owner of such plot and shall become a lien upon such plot, collectable and enforceable in the same manner as other charges or liens as hereinabove provided.

28. All service entrance installations served by the underground electrical distribution system shall be installed underground and maintained in accordance with specifications of the Tampa Electric Company for such installation.

29. Easements have been created and designated as a bridle paths. These easements may or may not be fenced by Hickory Creek Property Owners Association, Inc. It is intended that these easements be utilized solely by the residents of Hickory Creek Subdivision for their pleasure in riding horses and ponies. Property owners utilizing these easements shall refrain from activities which may be a nuisance to adjoining property owners.

30. These Restrictions may be enforced by Hickory Creek Property Owners Association, Inc., and by any person or corporation otherwise entitled by law to enforce same.

31. All of the restrictive covenants, conditions, limitations and other provisions hereinabove set forth shall be and remain in force and effect until January 1, 2030, and in the event any one or more of the above restrictive covenants, conditions, limitations or other provisions, or any part of same, shall at any time be held to be invalid by any court of competent jurisdiction, then said remaining covenants, conditions, limitations, and provisions shall be and remain as valid as if the invalid covenant, condition, limitation, provision, or part had never entered into or been made part of these Restrictions. These Restrictions will automatically be renewed for successive 10-year periods unless or until this document is amended to terminate at the end of any renewal period. Such amendment to terminate shall require an affirmative vote of at least 80% of the lots in Hickory Creek Subdivision.

32. At any time while these Restrictions are in effect, they may be changed or amended by a written agreement of the owners of at least 60% of the lots in said Hickory Creek Subdivision.

33. Concerning Lot 5, Block 5 (known as the Homeowner's Lot or Community Property Lot). This lot is subject to all easements, restrictions, limitations and encumbrances of record plus it is subject to the restriction that for a period of ninety-nine (99) years, no structure shall be built, and no horseback riding or other sports activity shall take place upon the west 50

feet thereof, except that the foregoing restriction shall not apply in the event that the Grantee, or its successors in interest, erects a single-family residence thereon.

34. These restrictions and covenants of use and occupancy shall run with the lands upon the heirs, successors, and assigns of each owner.

35. Attached hereto as Exhibit A are the Articles of Incorporation of Hickory Creek Property Owners Association, Inc.; Attached hereto as Exhibit B are the Bylaws of Hickory Creek Property Owners Association, Inc.; attached hereto as composite Exhibit C is a graphic depiction of the Hickory Creek subdivision; attached hereto as Exhibit D is the list identifying each parcel subject to the governing documents by legal description and name of owners at the time the proposed Revitalized Declaration was submitted for approval by the parcel owners; attached hereto as Exhibit E is the Letter of Approval of Revitalization of the Covenants issued by the State of Florida, Department of Economic Opportunity.

IN WITNESS WHEREOF, Hickory Creek Property Owners Association, Inc., has caused this Revitalized Declaration to be executed in its name on this ____ day of 2023.

HICKORY CREEK PROPERTY OWNERS
ASSOCIATION, INC.

President

Signature of Witness

Signature of Witness

Printed Name of Witness

Printed Name of Witness

STATE OF FLORIDA
COUNTY OF HILLSBOROUGH

Sworn and subscribed before me on this ____ day of _____, 2023, by _____, as President of Hickory Creek Property Owners Association, Inc., a Florida corporation, not-for-profit, on behalf of the corporation who is personally known to me or has produced a Florida Driver's License as identification.

Notary Public

My Commission Expires:

Signature of Notary Public

Signature of Witness

Printed Name of Witness

Secretary

Signature of Witness

Printed Name of Witness

STATE OF FLORIDA
COUNTY OF HILLSBOROUGH

Sworn and subscribed before me on this ____ day of _____, 2023, by _____, as Secretary of Hickory Creek Property Owners Association, Inc., a Florida corporation, not-for-profit, on behalf of the corporation who is personally known to me or has produced a Florida Driver's License as identification.

Notary Public

Printed Name of Notary Public

My Commission Expires: